

COMMERCIAL AGREEMENT (Excerpted Clauses)

1. Warranties. Seller warrants that the Goods shall conform to Seller's standard specifications or standard product description for the Goods in effect at the time of shipment, or such other specifications that have been agreed upon by Seller and Buyer in a signed writing in effect at the time of shipment (if any); provided, however, Buyer acknowledges that the Goods may be (or be comprised of) biological materials (including enzymes and living microbes) and as such (i) compliance with the specifications (e.g., cell count, potency, purity and/or activity levels) may vary from batch to batch, (ii) any specification may be stated as a range or as a total for the Goods (i.e., not as for any individual component), and (iii) Seller will not be in breach of warranty to the extent Goods fail to meet specifications as a result of shipping, handling, storage or use of Goods after Goods leave control of Seller. Except as otherwise agreed upon by Seller and Buyer in a signed writing, Seller reserves the right to make changes to the specifications for the Goods and/or to the processes and/or locations for manufacturing the Goods without notification to or consent from Buyer. SELLER HEREBY DISCLAIMS AND REJECTS ANY AND ALL OTHER WARRANTIES, EXPRESSED OR IMPLIED, WITH RESPECT TO THE GOODS, INCLUDING BUT NOT LIMITED TO ANY WARRANTY OF FITNESS FOR ANY PURPOSE, OF MERCHANTABILITY OR OF NON-INFRINGEMENT.

2. Women.com hereby grants eDiets a non-exclusive, non-transferable, royalty-free worldwide right and license without the right to sublicense to use the Women.com Marks during the Term solely in connection with (i) the fulfillment of eDiets' obligations under this Agreement, and (ii) in advertising and marketing collateral related to this Agreement. eDiets hereby grants to Women.com, subject to the terms and conditions of this Agreement, a non-exclusive, nontransferable, worldwide, royalty-free license to use, copy, reproduce and display the editorial content and other data, branding and other identification provided by eDiets to Women.com in connection with this Agreement (the "eDiets Content") on the Women.com Sites: (i) for publication in the Diet Center and elsewhere throughout the Women.com Sites; (ii) for the promotion of eDiets and the Diet Center on the Women.com Sites and in collateral advertising materials; and (iii) for such other purposes as are consistent with or otherwise authorized under this Agreement. eDiets hereby grants Women.com a non-exclusive, non-transferable, royalty-free worldwide right and license without the right to sublicense to use the eDiets Marks during the Term solely in connection with (i) the fulfillment of Women.com's obligations under this Agreement, and (ii) in advertising and marketing collateral related to this Agreement.

3. As used in this Agreement: 4.2.2 the term "Commission" will mean the total fees paid in cash to us, by insurance carriers as a percentage of the Premiums generated by insurance policies sold by the Franchised Business, on all new and renewal policies. We will receive all Commissions (defined below) from insurance carriers.

4. In the event of parcel damage resulting from leakage or fire, Party B shall indemnify at the standard rate of RMB200 per parcel, and indemnify the actual price for high-end insured parcel (or indemnify by the value of the parcel provided by arbitration department determined by Party A).

5. IBM assumes and will assume ownership and MSL assigns and will assign all intellectual and industrial property rights for hardware, software, design and documentation of all Products delivered under this Agreement

IBM will also own and MSL will assign any invention made by MSL on Products, and on any invention related to IBM processes and systems that MSL makes while MSL uses those processes and systems in the performance of this Agreement provided that nothing herein shall restrict MSL's right to use such inventions in the performance of its obligations hereunder.

6. For all users

Both the law and these terms try to strike a balance as to what you or Google can claim from the other in case of problems. That's why the law requires everyone to be responsible for certain liabilities — but not others — under these terms.

These terms only limit our responsibilities as allowed by applicable law. These terms don't limit liability for gross negligence or willful misconduct.

To the extent allowed by applicable law:

Google is liable only for its breaches of these terms or applicable service-specific additional terms

Google isn't liable for:

loss of profits, revenues, business opportunities, goodwill, or anticipated savings
indirect or consequential losses
punitive damages

Google's total liability arising out of or relating to these terms is limited to the greater of (1) \$200 or (2) the fees paid to use the relevant services in the 12 months before the dispute

7. This Agreement is not assignable or transferable by either Party, in whole or in part, without the prior written consent of the other Party; provided, however that Premier may assign this Agreement in the event that Premier is sold, merged into or with another entity, or undergoes a "change in control".